

Thank you for entrusting Falvey Cargo Underwriting with your client's cargo insurance program.

At Falvey, we are committed to finding you solutions that make a tangible difference at an affordable price.

Falvey Cargo is an MGA writing on behalf of the following Insurance Company:

LLOYD'S

Lloyd's of London is an Insurance Market that dates back to 1686. It is the center of specialty insurance and unique solutions. Lloyd's currently enjoys an A+ rating from Standard & Poor's, AA- from Fitch and A from A.M. Best.





66 Whitecap Drive
North Kingstown, RI 02852
401.792.0144
Fax – 401.667.0573

Contact Directory

At Falvey Insurance Group, we are committed to providing quality service to our customers. Below you will find a directory to guide you in the event you need to contact a member of our team for assistance.

For questions regarding **CLAIMS**

claims@falveycargo.com

24-hr Hotline – 877.572.5553

For questions regarding **INVOICES or FINANCE**

finance@falveycargo.com

401.792.0144

Fax – 401.667.0573

For questions regarding your **POLICY**

Please contact your Underwriter. If they are unavailable, please contact:

insure@falveycargo.com

401.792.0144

Fax – 401.667.0573

For more information – falveycargounderwriting.com

Complaints Procedure - Our Commitment to Service

Falvey Insurance Group is dedicated to providing a world-class level of service, which is why if our service does not meet your expected standards, please contact us as soon as you can. We will do our best to address your concerns as quickly as possible.

To help us most efficiently resolve your concerns, we ask that you provide us with as much information as possible, including:

- Your full name, address and contact details
- The details of your complaint
- Any relevant reference number - including policy or claims numbers. These can be found on your insurance documentation
- Details of any company that you purchased your insurance through
 - Falvey Cargo Underwriting, Ltd.
 - Falvey Shippers Insurance
 - Safe Harbor Pollution Insurance

You can contact **Robert Falvey**, General Counsel, in one of the following ways:

By telephone – +1(401) 675-9212

By e-mail – complaints@falveyinsurancegroup.com

Or you can write to us at the following address:

Robert Falvey
General Counsel
Falvey Insurance Group
66 Whitecap Drive
North Kingstown, RI 02852

If your complaint is not resolved to your satisfaction by the close of the third business day following receipt of your complaint, we will provide written notice of the expected turnaround time. Should you remain dissatisfied with the response that you receive from Falvey, you may if you wish, refer your complaint to Lloyd's (only in instances where the policy was underwritten by a Lloyd's Syndicate). Lloyd's complaints procedures are set out in the leaflet "Your Complaint – How We Can Help" available at www.lloyds.com/complaintshandling. Lloyd's will investigate the matter and provide a final response. Lloyd's contact details are as follows:

Complaints
Lloyd's
One Lime Street
London EC3M 7HA
Email: complaints@lloyds.com
Telephone: +44 (0)20 7327 5693
Website: www.lloyds.com/complaints

CYBER RESULTANT CARGO DAMAGE INSURANCE DECLARATIONS

ASSURED	Indaptus Therapeutics, Inc. 3 Columbus Circle, 15th Floor New York, NY 10019	Issue Date: 07/08/2025 Policy No. CPB-175599 Underlying Policy No. FAL-175599
ATTACHMENT AND TERMINATION	Effective from 12:00 am, July 26, 2025 to 12:01am, July 26, 2026	
PREMIUM	Premium: 680.00 Payment Terms: Inception In the event of mid-term cancellation or in the event that the actual rate basis is less than the estimated rate basis, no return premium shall be given to the Assured, it being understood and agreed that this premium is a minimum, fully earned premium.	
SUM INSURED	500,000.00 Any one occurrence and in the annual aggregate (Combined Single Limit including 10% of the limit of insurance as an Extra Expense Sublimit (per Section 2 of this policy)) but in no event shall the Extra Expense sublimit be greater than \$100,000.00	
DEDUCTIBLE	25,000.00 Any one loss or occurrence per underlying policy FAL-175599	
ENDORSEMENTS / ADDITIONAL COVERAGES (as hereto attached to this policy via signed Endorsement)	YES NO ☒ ☐ Service of Suit Endorsement	
INSURANCE BROKER	Marsh & McLennan Insurance Agency LLC 9171 Towne Center Drive Suite 100 San Diego, CA 92122	
CONTRACT FORMS AND CLAUSES	Policy Forms(s): Falvey CyberLink Cargo Policy V.0125	
CURRENCY	All references to currency on this policy reflect US Dollars	



66 Whitecap Drive
North Kingstown, RI 02852
Tel: 401-792-0144
Fax: 401-667-0573
Website: www.falveycargo.com

CYBER RESULTANT CARGO DAMAGE INSURANCE DECLARATIONS

The terms and conditions offered hereunder may differ from the applicant's prior policy or from what the broker or agent has requested on the submission.

This policy may be subject to Local Taxes not evident at the time of placing or confirming cover and therefore these terms will be net of any such taxes. This policy has been underwritten on the basis that goods insured are at approved static locations for less than 90 days. Goods at approved static locations for terms greater than 90 days may give rise to local taxes in Country of risk. Where such taxes are payable by the Assured directly or through the Producing Broker this will be the responsibility of said parties.

The liability of the Underwriters is several and not joint and is limited solely to the extent of their proportions as per the below. The Underwriters are not responsible for the subscription of any co-scribing Underwriter who for any reason does not satisfy all or part of its obligations.

This is to certify that the undersigned have arranged insurance as hereinafter specified:

- 100% with Underwriters at Lloyd's, London England as per covernote B087525F03T5001;

This policy schedule forms part of the insurance contract and must be read in the context of the CyberLink Cargo Policy Wording (as attached).

It is hereby understood and agreed by the **Insured** and the Insurers that the language of this insurance contract shall be English and words or phrases in this insurance contract shall have meanings that should be construed in accordance with English common usage.

This insurance contract shall be governed by and construed in accordance with the Laws of the state of New York and any dispute arising out of or in connection with it.

All terms, clauses and conditions subject to the CyberLink Cargo Policy Wording (as attached) and the **Underlying Insurance Policy** (where coverage under Section 1 is marked as taken up).

Issued at North Kingstown, Rhode Island, as per authority granted Falvey Cargo Underwriting July 08, 2025.

By:

Signature J. Michael Falvey
Authorized Representative

Endorsement No: 1

Effective date of this Endorsement: July 26, 2025

This Endorsement is attached to and forms a part of Policy Number: CPB-175599

"Insured" or "Assured" Referred to in this Endorsement is Indaptus Therapeutics, Inc.

"Insurer" or "Assurer" Referred to in this Endorsement is as per Declarations Page or as endorsed thereon

SERVICE OF SUIT ENDORSEMENT

This endorsement modifies insurance provided under the following: Falvey CyberLink Cargo Policy V.0125

To where it should apply, the following shall supersede any wording in the policy regarding Service of Suits and/or Service of Process and if absent, the following shall be attached where applicable:

In regard to policies secured wholly or partially by Underwriters at Lloyd's of London, the following shall apply for the interest of Underwriters at Lloyd's of London:

INSTITUTE SERVICE OF SUIT CLAUSE (U.S.A.)

This is a Policy of Marine Insurance governed by United States federal maritime law as recognized in the United States Court of Appeals for the Second Circuit, and to the extent the federal maritime law does not provide an applicable rule of law, then by the law of the State of New York, independent of any rules as to choice of law.

It is agreed that in the event of any dispute arising with respect to payment of any amount claimed to be due hereunder, The Insurers and the Insured hereon agree to submit to the jurisdiction of the United States District Court for the Southern District of New York, or, in the event the United States District Court for the Southern District of New York lacks federal subject matter jurisdiction, to the jurisdiction of the Supreme Court of the State and the County of New York, and will comply with all requirements necessary to establish jurisdiction with such Court and all matters arising hereunder shall be determined in accordance with the law and practice of such Court.

If it is determined by the United States District Court for the Southern District of New York, or in the alternative the Supreme Court of the State and the County of New York, that this forum selection is not enforceable, These Insurers will, at the request of the Insured, submit to the jurisdiction of a court of competent jurisdiction within the United States of America, in which event The Insurers shall have the right to remove the action to a United States Federal District Court, or to seek remand therefrom, or to seek a transfer to any other court of competent jurisdiction, as permitted by the laws of the United States of America or state, and provided further that nothing in this provision constitutes a waiver of The Insurers' rights to commence an action in any court of competent jurisdiction in the United States of America. Subject to the Underwriters' rights set forth above, it is further agreed that the Assured may serve process upon:

a) With respect to Lloyd's security (wholly or in part):

Lloyd's America, Inc
Attention: Legal Department
280 Park Avenue, East Tower, 25th Floor
New York, NY 10017

and that in any suit instituted against any one of them upon this contract the Underwriters will abide by the final decision of the Court or of any Appellate Court in the event of an appeal.

- (b) The above-named are authorized and directed to accept service of process on behalf of Underwriters in any such suit and/or upon the request of the Assured to give a written undertaking to the Assured that they will enter a general appearance upon the Underwriters' behalf in the event such a suit shall be instituted.
- (c) The right of the Assured to bring suit as provided herein shall be limited to a suit brought in its own name and for its own account. For the purpose of suit as herein provided the word Assured includes any mortgagee under a ship mortgage which is specifically named as a loss payee in this insurance and any person succeeding to the rights of any such mortgagee.
- (d) Further, pursuant to any statute of any state, territory or district of the United States of America which makes provision therefor, Underwriters hereby designate the Superintendent, Commissioner or Director of Insurance or other officer specified for that purpose in the statute, or his successor or successors in office (the Officer), as their true and lawful attorney upon whom may be served any lawful process in any action, suit or proceeding instituted by or on behalf of the Assured or any beneficiary hereunder arising out of this contract of insurance, and hereby designate the above-named as the person to whom the Officer is authorized to mail such process or a true copy thereof.

All other terms and conditions of this Policy remain unchanged.

Signed at North Kingstown, Rhode Island on the 8th of July, 2025.

Signature J. Michael Falvey
Authorized Representative



CyberLink Cargo Policy Wording

This policy schedule forms part of the insurance contract and must be read in the context of the CyberLink Cargo Policy Wording (as attached). Extensions are only provided as described below.

LANGUAGE: It is hereby understood and agreed by the **Assured** and the Insurers that the language of this insurance contract shall be English and words or phrases in this insurance contract shall have meanings that should be construed in accordance with English common usage.

LAW & JURISDICTION: as per the **Underlying Insurance Policy**

Important Notices

DATA PROTECTION

It should be understood that any information provided by you, may be passed to third parties, in order for us to fully consider your insurance cover and when effected to administer your account including the handling of any claims. We will require all companies to whom we pass your data to comply with the provisions of the General Data Protection Regulation (EU) 2016/679. Unless required by Law, the Financial Conduct Authority (FCA) or as necessary to consider, effect and administer your insurance, none of your personal data (even if not sensitive) shall be disclosed to any person or organization or used for any other purpose, without your consent. We shall always respect your information and personal data and comply with the provisions of the General Data Protection Regulation (EU) 2016/679.

IMPORTANT NOTICE

COVERAGE UNDER ANY OF THE INSURING CLAUSES HEREUNDER SHALL BE SUBJECT TO THE SCHEDULE ABOVE BEING MARKED WITH A CORRESPONDING LIMIT OF LIABILITY, INDICATING THAT THE COVERAGE HAS BEEN PURCHASED.

AS MORE FULLY SET FORTH BELOW, SECTION 1 – RESULTANT CARGO DAMAGE, COVERS ONLY LOSSES DISCOVERED AND REPORTED TO INSURERS DURING THE POLICY PERIOD.

ALL CLAIMS OR ANY OTHER AMOUNTS PAYABLE UNDER THIS POLICY ARE SUBJECT TO THE APPLICABLE LIMITS OF LIABILITY AND THE APPLICABLE DEDUCTIBLE(S). PLEASE BE ADVISED THAT THE LIMITS OF LIABILITY ARE INCLUSIVE OF CLAIMS EXPENSES.

WORDS AND TERMS THAT APPEAR IN BOLD FACE TYPE BELOW ARE DEFINED TERMS IN THIS POLICY. PLEASE READ THIS POLICY CAREFULLY.



Section 1

Resultant Cargo Damage

Insurers agree, subject to the **Combined Single Limit of Liability**, terms and conditions of this policy, and the terms, conditions and sublimits of the **Underlying Insurance Policy** to indemnify **You** for any loss or damage which would otherwise be covered under the **Underlying Insurance Policy** but for the operation of the Marine Cyber Endorsement LMA5403 contained within the **Underlying Insurance Policy**.

In addition to the above, coverage is conditional upon such loss or damage having occurred during the **Period of Insurance** and having been discovered and reported to Insurers within ninety (90) days of such discovery of loss or damage occurring.

1.1 LMA 5403 Definition

For the avoidance of doubt, the Marine Cyber Endorsement LMA5403 shall mean:

MARINE CYBER ENDORSEMENT

- 1 Subject only to paragraph 3 below, in no case shall this insurance cover loss, damage, liability or expense directly or indirectly caused by or contributed to by or arising from the use or operation, as a means for inflicting harm, of any computer, computer system, computer software programme, malicious code, computer virus, computer process or any other electronic system.
- 2 Subject to the conditions, limitations and exclusions of the policy to which this clause attaches, the indemnity otherwise recoverable hereunder shall not be prejudiced by the use or operation of any computer, computer system, computer software programme, computer process or any other electronic system, if such use or operation is not as a means for inflicting harm.
- 3 Where this clause is endorsed on policies covering risks of war, civil war, revolution, rebellion, insurrection, or civil strife arising therefrom, or any hostile act by or against a belligerent power, or terrorism or any person acting from a political motive, paragraph 1 shall not operate to exclude losses (which would otherwise be covered) arising from the use of any computer, computer system or computer software programme or any other electronic system in the launch and/or guidance system and/or firing mechanism of any weapon or missile.

LMA5403

11 November 2019



1.2 No reinstatement

It is hereby expressly agreed that any reinstatement clause within the **Underlying Insurance Policy** shall not apply to this policy.

1.3 Proof of loss

The burden of proving that the claim is recoverable under this policy, and the quantum of the loss, shall fall upon **You**.

1.4 Automatic termination

This Section shall terminate automatically upon the termination of the **Underlying Insurance Policy**.

Subject to there being no indemnification made under this section, Insurers agree to a pro rata return of premium for this Section in the event of automatic termination by the operation of this clause 1.5

1.5 Conflict in Terms and Conditions

In the event of any conflict between the terms and conditions of this policy and the terms and conditions of the **Underlying Insurance Policy**, the terms and conditions of this policy shall prevail.



Section 2

Cyber Extra Expenses

Insurers' agree, subject to the limit of liability stated within the policy schedule, the **Combined Single Limit of Liability** and the terms and conditions of this policy and this policy schedule, to pay on **You** behalf or reimburse **You** for **Your** reasonable expenses and/or costs, which arise out of;

2.1 Cyber Extra Expenses

Cyber Extra Expenses directly resulting from a **Security Compromise** of **Your Computer Systems** and/or **Computer Systems** of a **Third Party** which is under direct contract with **You** and/or is involved in the storage or conveyance of the **Subject Matter Insured**.

2.2 Proof of loss

The burden of proving that the claim is recoverable under this policy, and the quantum of the loss, shall fall upon **You**.



Section 3

Policy Exclusions (applicable to all sections)

Insurers shall not be liable to indemnify **You** under this policy for any claim, circumstance, loss, damage or expense directly or indirectly caused by or contributed to by or arising from:

- a) Any loss or damage to property that took place outside of the **Period of Insurance**.
- b) Any claim, circumstance, loss, damage or expense that has been notified to any other insurance policy prior to the inception of this policy, unless specifically notified and accepted by Insurers.
- c) Any loss or damage to property, which is not covered within the **Underlying Insurance Policy**. For further clarification, this policy will not indemnify **You** for any loss or damage to structures, buildings, vessels or any other modes of transportation, other than when actually being transported as the insured cargo.
- d) Any **System Failure** of any computer, **Computer System**, computer software programme, computer process or any other electronic system.
- e) Any loss or damage to personal effects and household goods.
- f) Any loss or damage to **Subject Matter Insured**, whilst undergoing any form of **Process**. For the avoidance of doubt, this exclusion will not include any form of packaging and/or preparation necessary for transit and/or storage as covered within the **Underlying Insurance Policy**.
- g) Any loss or damage, including visible and extraneous damage and also non-visible damage to tangible property owned by any **Third Party**.
- h) Any loss or damage to **Subject Matter Insured**, as a result from any actual or attempted theft by an employee of the **Assured**, except with regards to a theft which leads to a valid **Security Compromise**.
- i) Identifying, patching or remediating software program errors or vulnerabilities of **Computer System** and/or network except following a loss covered hereunder.
- j) Any failure or interruption of infrastructure, including telecommunications, internet service, satellite, cable, electricity, gas, water or other utility service providers provided however that this exclusion shall not apply to a **Security Compromise** affecting infrastructure under the direct operational control of the **Assured** or a **Third Party** directly involved in the shipping, transportation and/or storage of the **Subject Matter Insured** hereunder.
- k) **Bodily Injury**.
- l) Any loss of market and/or loss of contract.
- m) Any product liability, contractual liability and/or **Third Party** liability.
- n) Any unexplained loss.



- o) Any failure in design, architecture or configuration of **Your Computer Systems** and/or network, which arises out of **Undelivered Programmes**. For the avoidance of doubt, this shall not excluded coverage if the failure was due to unauthorised accesses or use of **Your Computer Systems** and/or network, which results in a valid **Security Compromise**
- p) Any wear and tear, drop in performance, progressive or gradual deterioration, or ageing of electronic equipment and other property or **Hardware** used by **You**, or **Your** failure or those acting on **Your** behalf to maintain **Your Computer Systems** and/or network.
- q) Any **Security Compromise** actually known to one or more of the following **Employees**; Chief Executive Officer, Chief Information Office, Chief Technology Officer, Chief Security Officer, Chief Privacy Officer, General Counsel, Information Security Officer, Risk Manager and/or Insurance Decision Maker, either current or former, who had formed the belief, prior to the inception date of this policy, that it was reasonable likely to lead to a covered loss under this policy.
- r) Infidelity or any dishonesty or fraud on the part of one or more of the following **Employees**; Chief Executive Officer, Chief Information Office, Chief Technology Officer, Chief Security Officer, Chief Privacy Officer, General Counsel, Information Security Officer, Risk Manager and/or Insurance Decision Maker, either currently or formerly employed under contract with **You**.
- s) Any kind of seepage or any kind of pollution and/or contamination, or threat thereof, whether or not caused by or resulting from a peril insured, or from steps or measures taken in connection with the avoidance, prevention, abatement, mitigation, remediation, clean-up or removal of such seepage or pollution and/or contamination or threat thereof.

The term 'any kind of seepage or any kind of pollution and/or contamination' as used in this clause includes (but is not limited to):

- I. seepage of, or pollution and/or contamination by, anything, including but not limited to, any material designated as a 'hazardous substance' by any Environmental Protection Agency or as a 'hazardous material' by any Department of Transportation, or defined as a 'toxic substance' by any Environmental Protection Act; and
 - II. the presence, existence, or release of anything which endangers or threatens to endanger the health, safety or welfare of persons or the environment.
- t) Radioactive contamination, chemical, biological, bio-chemical and electromagnetic weapons hazard – including:
- I. Ionising radiations from or contamination by radioactivity from any nuclear fuel or from any nuclear waste or from the combustion of nuclear fuel.
 - II. The radioactive, toxic, explosive or other hazardous or contaminating properties of any nuclear installation, reactor or other nuclear assembly or nuclear component thereof.
 - III. Any weapon or device employing atomic or nuclear fission and/or fusion or other like reaction or radioactive force or matter.
 - IV. Any chemical, biological, bio-chemical, or electromagnetic weapon.
- u) Windstorm, hailstorm, flood, freezing, weight of snow, ice or sleet, volcanic action, earth movement, sinkhole and/or smoke.



- v) Fines or penalties (Civil or Criminal) including those imposed by the relevant regulator.
- w) Penalties, punitive damages, exemplary damages or any additional damages resulting from the multiplication of compensatory damages.
- x) Excluding shipments and/or storage to, from and/or within Russia and/or Ukraine and/or Belarus
- y) **War, Cyber War and Cyber Operation** per the following clause:

War, Cyber War and Cyber Operation Exclusion

1. Notwithstanding any provision to the contrary in this insurance, this insurance does not cover any loss, damage, liability, cost or expense of any kind (together "loss") directly or indirectly occasioned by, happening through or in consequence of:
 - 1.1 **war** or a **cyber operation** that is carried out in the course of **war**; and/or
 - 1.2 retaliatory **cyber operations** between and **specified states**; and/or
 - 1.3 a **cyber operation** that has a major detrimental impact on:
 - 1.3.1 the functioning of a **state** due to the direct or indirect effect of the **cyber operation** on the availability, integrity or delivery of an **essential service** in that **state**; and/or
 - 1.3.2 the security or defence of a **state**.
2. The insurer shall have the burden of proving that this exclusion applies.



COMMUNICABLE DISEASE EXCLUSION

(Cargo)

1. Notwithstanding any provision to the contrary within this insurance, this insurance does not insure any loss, damage, liability, claim, cost or expense of whatsoever nature caused by, contributed to by, resulting from, arising out of, or in connection with a Communicable Disease or the fear or threat (whether actual or perceived) of a Communicable Disease regardless of any other cause or event contributing concurrently or in any other sequence thereto.
2. As used herein, a Communicable Disease means any disease which can be transmitted by means of any substance or agent from any organism to another organism where:
 - 2.1. the substance or agent includes, but is not limited to, a virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, and
 - 2.2. the method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and
 - 2.3. the disease, substance or agent can cause or threaten bodily injury, illness, damage to human health, human welfare or property.

JC2020-011

17 April 2020



Section 4

Limits and Deductibles

4.1 Limit of Indemnity

This policy shall provide **You** with insurance coverage up to but not exceeding the each and every **Occurrence** and in the annual **Combined Single Limit of Liability** stated in the schedule and as stated within the Insuring Agreements Purchased.

This includes all losses, covered loss payments, and any other amounts paid by Insurers under this policy regardless of the types of losses incurred, the number of claims, persons or entities insured, or the number of claimants or losses reported or involved.

For the avoidance of doubt, where more than one separate **Security Compromise** takes place within the **Period of Insurance** then such claims or losses arising directly or indirectly therefrom shall be deemed separate events and shall be subject to a separate deductible regardless of all and any similarities in conditions, circumstances or time during the period that all and any claim is made or loss is incurred.

4.2 Deductibles

The **Combined Single Limit of Liability** defined in Clause 4.1 is excess of **Your** deductible stated in the schedule and the insurance agreements purchased above.

In respect of Section 1 (Resultant Cargo Damage), the deductible shall apply per **Occurrence** and unless stated otherwise within this policy and/or policy schedule, shall be subject to the applicable **Underlying Insurance Policy** deductible.



Section 5

Conditions (applicable to all Sections)

5.1 Your Obligations

You shall make all reasonable endeavours to mitigate against the risk of a **Security Compromise** of **Your Computer Systems** and/or network, in order to prevent foreseeable loss, destruction or damage to property insured under this policy.

5.2 Other Insurance

Where other insurance is available to **You** covering any damage, losses or expenses which are also covered hereunder, this policy shall be excess of any such other insurance and shall not apply until such time as the amount of the other insurance (where valid and collectible) has been exhausted by damage, losses or expenses of the type covered by this policy.

5.3 Subrogation

The insurer shall upon reimbursement hereunder to **You** of any damage, loss or expense be subrogated to all of **Your** rights of recovery against any other person, firm or corporation who may be liable for such damage, loss or expense reimbursed by the Insurers.

It is agreed that the insurer may claim upon and institute legal proceedings against any parties believed responsible for any damage, loss or expense reimbursed hereunder in **Your** name and **You** shall provide the Insurers with full co-operation in pursuing such claim or legal proceedings.

Permission is expressly granted to **You** to waive insurer's rights of subrogation against any individual, firm or corporation who or which is under contract or otherwise performing work for **You** or for whom or which **You** are performing work or rendering services, provided always such waiver is executed in writing prior to any reimbursement hereunder.

Except as specifically provided or permitted by this policy, **You** shall not waive, release or diminish rights of recovery or subrogation with respect to any damage, loss or expense which, upon payment by the Insurers, would otherwise belong or accrue to the Insurers, and insofar as and to the extent that any action by **You** waives, releases or diminishes the rights of recovery or subrogation in respect of such damage, loss or expense the Insurers shall have no liability under this policy.

5.4 Reporting Requirements

It is a condition hereunder that **You** shall upon becoming aware of a damage, loss or expense, provide written notice to the Insurers of such damage, loss or expense as soon as is reasonably practicable.

You may notify the Insurers during the **Period of Insurance** of any circumstance that may, in **Your** reasonable opinion, give rise to a claim hereunder, but time periods for reporting not to exceed those detailed in Section 1.

5.5 Claims Handling

- a) The applicable limit of liability as stated within Clause 4.1 of the policy shall be reduced, and may be completely exhausted, by payment of **Claims Expenses** or any other amounts covered under



the policy. **Claims Expenses**, and any other amounts covered under this policy shall be applied against the deductible.

- b) You shall cooperate with the Insurers in all investigations. The Insurers shall have the right to make any investigation it deems necessary with respect to coverage or otherwise including, but not limited to, any investigation with respect to the **Application** and statements made in the **Application**. The **Assured** shall execute or cause to be executed all documents, including electronic documents, and render all assistance as requested by the insurer.
- c) The Insurers shall not be obligated to pay any **Claims Expenses** or any other amounts covered under this policy, after the applicable **Combined Single Limit of Liability** has been exhausted by payment of **Claims Expenses**, and/or other amounts covered under this policy.

5.6 Headings

Headings contained in this policy are included therein for convenience of reference only and shall not constitute a part of this policy.

5.7 Right of Third Parties

The provisions of the Contracts (Rights of Third Parties) Act 1999 do not apply to this policy. It is understood and agreed that this policy does not confer any benefit on any **Third Party** for the purposes of the said Act.

5.8 Sanctions Exclusion Clause

This policy shall not be deemed to provide cover and no Insurer shall be liable to pay any claim or provide any benefit hereunder to the extent that the provision of such cover, payment of such claim or provision of such benefit may expose that Insurer to any sanction, prohibition or restriction under United Nations resolutions or the trade or economic sanctions, laws or regulations of the European Union, United Kingdom or United States of America.



Section 6

Definitions

Aggregate means the maximum amount Insurers will pay for covered losses during the **Period of Insurance**, irrespective of the number of losses, claim or **Occurrences** within the **Period of Insurance**.

Application means **Your** proposal form which is completed prior to the purchasing of this policy.

Assured means **You**.

Bodily Injury means physical injury to a human being including death, sickness, disease or disability and all mental injury, anguish or shock to such human being resulting from such physical injury, and all mental injury, anguish or shock suffered by any relative of such human being or bystander resulting from such physical injury.

Claims Expenses means investigation, adjustment, appraisal costs, loss adjuster fees and any other reasonable expenses paid or incurred by **You** or on **Your** behalf, as approved by insurers.

Combined Single Limit of Liability means the monetary amount set forth in the policy schedule, inclusive of **Claims Expenses**, that is the total limit of cover available to **You** over both Sections 1 and 2 in the **Aggregate** over the **Period of Insurance**, subject always to the applicable deductible.

Computer Systems means any **Hardware**, **Software**, firmware, communications system, electronic device (including but not limited to, smart phone, laptop, tablet, wearable device), server, cloud infrastructure or microcontroller including any similar system or any configuration of the aforementioned and including any associated input, output, data storage device networking equipment or back up facility and the **Data** stored thereon. For clarification, **Computer Systems** also includes **Industrial Control Systems**.

Cyber Operation means the use of a **Computer System** by or on behalf of a **state** to disrupt, deny, degrade, manipulate or destroy information of a **Computer System** of or in another **state**.

Cyber Extra Expenses means additional forwarding costs, demurrage costs and additional expenditures reasonably incurred for the sole purpose of reducing and/or mitigating a loss which could arise under Section 1 of this policy. For the avoidance of doubt, such costs shall not include any costs associated with mitigating reputational harm.

Data means facts, concepts and information converted to a form useable for communications, interpretation or processing by electronic and electromechanical data processing or electronically controlled equipment and includes programmes, **Software** and other coded instructions for the processing and manipulation of **Data** or the direction and manipulation of such equipment, including information held, stored or processed on a network.

Employees / Your Employees means those individuals that are employed by **You** on a permanent or contractual basis.

Essential Service means a service that is essential for the maintenance of vital functions of a **State** including without limitation: financial institutions and associated financial market infrastructure, health services or utility services.



Hardware means all physical components of **Your Computer Systems** and/or network, including portable equipment.

Industrial Control Systems means any devices, controls or **Networks** utilised to control, operate and/or automate industrial processes, including but not limited to, Supervisory Control and Data Acquisition (SCADA) systems, and Distributed Control Systems (DCS), programmable port systems and/or vessel systems to steer or control technical processes and any other embedded port, terminal and/or vessel monitoring or control systems thereof.

Joint Assured means those entities or persons identified in the policy schedule and shall be deemed to include any partner, executive officer, managing employee, director, president, vice-president thereof while acting within the scope of the duties bestowed on that person by the **Joint Assured**. If a **Joint Assured** is noted in the policy schedule, **You** have responsibility for the conduct of the **Joint Assured** under this Insurance.

Malicious Code means any code in any part of a **Software** system or script that is intended to cause unauthorised effects, security breaches or damage to a system.

Occurrence means any one loss or series of connected losses commencing during the **Period of Insurance** that results in liability to which this policy applies, arising out of and directly occasioned by one **Security Compromise**.

Period of Insurance means the **Period of Insurance** as shown in the schedule.

Process means a series of mechanical, manual or chemical operations to alter, reduce, add-to, create or develop a good, element and/or product, including but not limited to refining, manufacture, assembly.

Security Compromise means the use or operation, as a means for inflicting harm, of any computer, **Computer System**, **Software**, **Malicious Code**, computer virus, computer process or any other electronic system.

Software means the programs and other operating information used by a computer.

Specified state means China, France, Germany, Japan, Russia UK or USA.

State means sovereign state and/or its territorial waters.

Subject Matter Insured as defined within the **Underlying Insurance Policy**.

System Failure means any loss, damage, destruction, distortion, erasure, corruption or alteration of electronic **Data** or loss of use, reduction in functionality, cost, expense of whatsoever nature resulting therefrom, which is not the result of a **Security Compromise**.

Third Party means an entity or person that is not the Insurers, **You** or **Your** Employees, but shall not include an entity to whom an insurance has been assigned by the **Assured** under a contract of sale or from whom they receive instructions to insure.

Undelivered Programmes means any programmes, software and/or applicable updates, which are not ready for operational use due to incomplete testing and/or the development stage has yet to be finalised.

Underlying Insurance Policy means the Cargo insurance placement listed in the schedule to this policy.



War means:

- i. the use of physical force by a **state** against another **state** or as part of a civil war, rebellion, revolution, insurrection, and/or
- ii. military or usurped power or confiscation or nationalisation or requisition or destruction of or damage to property by or under the order of any government or public or local authority,

whether war be declared or not

You means the individual, partnership, entity, trustee or corporation designated **Assured** within the policy schedule, including any **Joint Assured** as listed in the policy schedule.

Your means belonging to or associated with **You**.

Your Computer Systems means **Computer Systems** operated by **You**.